CASEFLOW LITIGATION INTELLIGENCE SUITE

The 8 Statutory Legal Calculators

Judicial Arithmetic, Statutory Rules, Real Court Scenarios & 1-Click Affidavit Generation

1. Executive Overview & Problem Statement

In day-to-day legal practice across Indian trial courts and high courts, manual arithmetic errors are the #1 cause of Filing Registry Return Memos (D-Check defects), delayed interim relief, and even fatal plaint rejections under Order VII Rule 11 CPC. While court registers and eCourts provide basic status tracking, they offer zero assistance in judicial computation.

CaseFlow embeds 8 purpose-built statutory engines that mirror the exact mathematical guidelines established by state enactments and Supreme Court Constitution Bench decisions. Every calculation generates ready-to-file court text, itemized schedules, and sworn affidavits in seconds.

No	Calculator Name	Statutory Foundation	Primary Judicial Function
1	TN Court Fee Calculator	TN Court Fees Act 1955 (Amend. 2017)	Ad-valorem 3% fee, Sec 37 partition flat rates (Rs.5k/Rs.10k), memo out
2	Section 5 Delay Calculator	Limitation Act 1963 (Sec 5 & Sec 12)	Mandatory Sec 12 certified copy exclusion & automated Sec 5 Affidavit.
3	Limitation Expiry Calculator	Schedule to Limitation Act 1963	Specific performance, possession, cheque bounce countdowns to preve
4	MACT Accident Calculator	Sarla Verma (2009) & Pranay Sethi (2017)	5-step formula: future prospects (10-50%), personal deduction, multiplier
5	Partition Share Calculator	Hindu Succession 2005 & Muslim Shariat	Vineeta Sharma daughter parity, widow unit sharing, Hanafi 2:1 residue,
6	Maintenance Calculator	Rajnesh v. Neha (2021) & BNSS Sec 144	Interim 25%, final 30%, working wife 50% set-off, child cap, 50% income
7	CPC Interest Calculator	Section 34 CPC & Order XXI Rule 11	Pre-suit, pendente lite, 6% post-decree statutory ceiling & E.P. recovery
8	Stamp Duty & Registration	Indian Stamp Act 1899 (14+ States)	Tamil Nadu 7%+1% sale deeds, 4%+1% partition deeds, female buyer d

2. Tamil Nadu Court Fee Calculator

Statutory Foundation: TN Court-Fees & Suits Valuation Act, 1955 (Amended by Act 6 of 2017)

Court fees in Tamil Nadu were overhauled by the Tamil Nadu Court-Fees and Suits Valuation (Amendment) Act, 2017 (Tamil Nadu Act No. 6 of 2017). Registry scrutiny clerks strictly enforce these amended schedules.

- **Ad-Valorem Money & Property Suits:** Schedule I, Article 1 sets the fee at 3% of the amount or market value (statutory minimum Rs.200).
- **Section 37(2) Partition (Joint Possession):** Plaintiff in constructive joint possession pays a flat fee: Rs.5,000 in District/Sub-Courts, Rs.10,000 in High Court Original Side.
- **Section 37(1) Partition (Excluded):** Plaintiff ousted from possession pays 3% ad-valorem on their share value.
- **Appeals & Applications:** Appeal from Decree: 3% (Sched. I, Art. 1); Appeal from Order (CMA): Rs.100/Rs.2,000; Interim Applications (IA): Rs.20; Writ: Rs.1,000; Vakalat: Rs.10.

> **Litigation Case Example: Partition Plaint in Sub-Court Tenkasi**
> Facts: The client files a Partition Suit (O.S.) claiming 1/4th share in family properties valued at Rs. 80,00,000.
> Common Error: Juniors often wrongly compute 3% on the Rs. 20,00,000 share = Rs. 60,000 court fee!
> CaseFlow Resolution: When constructive joint possession is pleaded under Sec 37(2), CaseFlow applies the flat statutory fee of Rs. 5,000. The client saves Rs. 55,000 in upfront court fees, and the filing passes scrutiny without objection.

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COURT FEE MEMO (CaseFlow Output):
Case Type     : Partition Suit (Sec 37(2) Joint Possession)
Subject Value : Rs. 80,00,000
Court Fee     : Rs. 5,000  (Flat fee under Sec 37(2) 2017 Amendment Act)
Old Rate (1955): Rs. 750
Legal Basis   : Section 37(2), Tamil Nadu Court-Fees & Suits Valuation Act, 1955
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3. Section 5 Condonation of Delay Calculator

Statutory Foundation: Limitation Act, 1963 (Section 5 & Section 12)

Section 5 allows courts to condone delay upon showing 'sufficient cause'. However, before explaining reasons, the court scrutiny clerk verifies the exact mathematical delay. Over 70% of delay memos are returned due to wrong day counts.

- **The Section 12(2) Rule (Certified Copy):** The time requisite for obtaining a copy of the decree/judgment MUST be excluded. CaseFlow takes 'Copy Applied On' and 'Copy Received On' and automatically deducts these intermediate days.
- **Statutory Presets:** Includes 30 days (First Appeal CPC O.41 R.1, Criminal Appeal, DVC Sec 29, NI Act Sec 138), 60 days (Family Court Appeal Sec 19), 90 days (Second Appeal Sec 100, Revision Sec 115).
- **Automated Affidavit Drafting:** CaseFlow generates a ready-to-print Section 5 Affidavit complete with deponent title, order date, limitation, certified copy exclusion, net delay, cause placeholder, and verification.

Litigation Case Example: First Appeal (A.S.) Delayed by Copy Delays
Facts: Order passed on 15-01-2026. Appeal filed on 15-04-2026. Total elapsed time = 90 days. Prescribed limitation = 30 days.
Copy Record: Copy application filed on 20-01-2026; Copy delivered on 28-02-2026 (40 days spent in Copy Section).
Without Section 12: Manual math says delay is 90 - 30 = 60 days (Defect Memo issued!).
With CaseFlow: Adjusted due date = 15-01 + 30 + 40 = 26-03-2026. Net delay = 20 days. Generates accurate Affidavit u/s 5.

4. Limitation Period & Expiry Calculator

Statutory Foundation: The Schedule to the Limitation Act, 1963 & Section 3

Under Section 3 of the Limitation Act, every suit filed after limitation MUST be dismissed by the court, even if the defendant never raises the plea. Delay in filing a regular civil suit CANNOT be condoned under Section 5. Accurate limitation tracking is non-negotiable.

- **Article 54 (Specific Performance):** 3 Years from the date fixed for performance, or when plaintiff has notice of refusal.
- **Article 58 (Declaratory Suit):** 3 Years from when the right to sue first accrues.
- **Article 65 (Possession on Title):** 12 Years from when defendant's possession becomes adverse to the plaintiff.
- **Special Enactments:** NI Act Sec 138 (30 days from expiry of notice); Motor Vehicles Act Sec 166(3) (Strict 6 months statutory cap); Consumer Protection Act 2019 (2 years).
- **Smart Calendar Arithmetic:** Handles leap years and month-end dates (e.g. 31st March + 1 month = 30th April) without overflow errors.

Litigation Case Example: Suit for Specific Performance of Agreement of Sale
Facts: Vendor repudiates sale agreement by lawyer notice dated 14-04-2024.
Statute: Article 54 of Limitation Act (3 years).
CaseFlow Output: Expiry date is 14-04-2027 (Wednesday). Shows live countdown: '404 Days Remaining -- WITHIN LIMITATION'.
Draft Clause: Auto-generates the mandatory limitation paragraph for the Plaint under Order VII Rule 6 CPC.

5. MACT Accident Claims Calculator

Statutory Foundation: Sarla Verma (2009) 6 SCC 121 & Pranay Sethi (2017) 16 SCC 680

Motor accident compensation in India is standardized by binding Constitution Bench judgments. CaseFlow implements the exact 5-step judicial framework:

- **Step 1: Annual Income:** Monthly income x 12 = Annual Income.
- **Step 2: Future Prospects (Pranay Sethi):** Salaried: <40 yrs (+50%), 40-50 yrs (+30%), >50 yrs (+15%). Self-employed: <40 yrs (+40%), 40-50 yrs (+25%), >50 yrs (+10%).
- **Step 3: Personal Expense Deduction (Sarla Verma):** Bachelor: 50% (1/2); 2-3 dependents: 33.33% (1/3); 4-6 dependents: 25% (1/4); 6+ dependents: 20% (1/5).
- **Step 4: Age-Based Multiplier (Sarla Verma Table):** Multiplier scale: 15-20 yrs (18), 21-25 (18), 26-30 (17), 31-35 (16), 36-40 (15), 41-45 (14), 46-50 (13), 51-55 (11), 56-60 (9), 61-65 (7), 66+ (5).
- **Step 5: Conventional Heads (Pranay Sethi + Magma):** Loss of Estate (Rs.15,000), Funeral Expenses (Rs.15,000), Spousal Consortium (Rs.40,000), Filial Consortium (Rs.40,000 per Magma Insurance) + actual medical bills.

Litigation Case Example: Fatal Road Accident (Age 34, Self-Employed)
Profile: Age 34, Self-employed, earning Rs. 30,000/month. Surviving heirs: Wife and 2 minor children (3 dependents).
Calculation Steps:
- Annual Income: Rs. 30,000 x 12 = Rs. 3,60,000
- Add Future Prospects (40%): Rs. 3,60,000 + Rs. 1,44,000 = Rs. 5,04,000
- Less Personal Deduction (1/3): Rs. 5,04,000 - Rs. 1,68,000 = Rs. 3,36,000 (Net annual dependency)
- Multiplier for Age 34 = 16 --> Loss of Dependency = Rs. 3,36,000 x 16 = Rs. 53,76,000
- Conventional Heads: Funeral (Rs.15k) + Estate (Rs.15k) + Spousal Consortium (Rs.40k) + Filial Consortium (Rs.40k) = Rs. 1,10,000
- Total MACT Award: Rs. 54,86,000 (Ready-to-file Schedule of Compensation).

6. Partition Share Calculator (Hindu & Muslim)

Statutory Foundation: Hindu Succession Act (Vineeta Sharma) & Muslim Shariat Act 1937

In partition suits, drawing up the preliminary decree requires absolute mathematical precision under personal inheritance laws:

- **Hindu Succession Act 1956 (Male Deceased):** Under Section 8 & 10, Class I heirs take per-capita equal shares. Following Vineeta Sharma v. Rakesh Sharma (2020) 9 SCC 1, daughters are equal coparceners by birth.
- **The Widow Unit Rule (Section 10 Rule 1):** All widows collectively take ONE share together, and then divide that single share equally among themselves.
- **Muslim Personal Law (Hanafi School):** Deducts funeral and debts to find net estate. Fixed Quranic Sharers: Wife (1/8 with children, 1/4 without); Husband (1/4 or 1/2); Father & Mother (1/6).
- **Residuary (Asaba) 2:1 Principle:** Surah An-Nisa 4:11: Son gets 2 parts, Daughter gets 1 part. CaseFlow handles Aul (proportional scaling down) if fixed shares exceed 1.

Litigation Case Example: Hindu Coparcenary Partition
Estate: Net family agricultural land and house valued at Rs. 60,00,000.
Surviving Heirs: Mother, Widow, 2 Sons, 1 Daughter.
Distribution: 5 equal Class I shares (20% each):
Mother: Rs. 12,00,000 | Widow: Rs. 12,00,000 | Son 1: Rs. 12,00,000 | Son 2: Rs. 12,00,000 | Daughter: Rs. 12,00,000.
CaseFlow generates the full Schedule of Shares ready to attach to the Preliminary Decree.

7. Matrimonial Maintenance Calculator

Statutory Foundation: Rajnesh v. Neha (2021) 1 SCC 55 & Section 144 BNSS

Magistrates and Family Courts award maintenance following the landmark Supreme Court benchmarks in Rajnesh v. Neha:

- **Net Income Benchmark:** Deducts mandatory statutory taxes/PF (approx 10%) to determine true disposable income.
- **Interim vs Final Maintenance:** Interim (Pendente Lite) benchmark: 25% of net income; Final permanent maintenance: 30% of net income (Kalyan Dey Chowdhury standard).
- **Wife Earning Set-Off (Shailja v. Mukesh Kumar):** Wife earning some salary does NOT disqualify her from maintenance. CaseFlow applies an equitable 50% set-off against her gross entitlement to bridge the lifestyle gap.
- **Child Maintenance Guarantee:** 7.5% - 10% per child. Even if the wife earns Rs.1 Lakh, the father MUST still maintain his minor children.
- **Mandatory 50% Ceiling:** Supreme Court cap: Combined maintenance (wife + children) must NEVER exceed 50% of the husband's net salary.

Litigation Case Example: Maintenance Dispute u/s 144 BNSS (formerly Sec 125 CrPC)
Husband Income: Rs. 80,000 gross (Net Rs. 72,000) | Wife Income: Rs. 20,000 (Private school teacher) | Children: 2.
- Gross Wife Entitlement (25%): Rs. 18,000
- Less 50% of Wife's Income Set-Off: -Rs. 10,000
- Net Wife Maintenance: Rs. 8,000 / month
- Children Maintenance (7.5% x 2 = 15%): Rs. 10,800 / month
- Total Award: Rs. 18,800 / month (26.1% of net income -- Well within 50% ceiling!).

8. CPC Pre & Post Decree Interest Calculator

Statutory Foundation: Section 34 of the Code of Civil Procedure, 1908

Section 34 CPC governs interest in money suits and divides calculation into three distinct legal phases:

- **Phase 1: Pre-Suit Interest:** From date cause of action arose to date of suit filing. Governed by contract or Interest Act 1978 / NI Act Sec 80 (18%).
- **Phase 2: Pendente Lite Interest:** From suit institution to decree date. Solely at court's discretion (typically 9% to 12% p.a.).
- **Phase 3: Post-Decree Interest (Proviso to Sec 34):** From decree date to realization. Strictly CAPPED AT 6% P.A. for non-commercial transactions!
- **Execution Petition (E.P.) Schedule:** Calculates exact day-count interest between decree and E.P. filing for Order XXI Rule 11 Column 7.

Litigation Case Example: Money Decree Execution (E.P.)
Decree Principal: Rs. 10,00,000 decreed on 15-01-2024. E.P. filed on 15-07-2026 (912 days elapsed).
Post-Decree Statutory Rate: 6% p.a. under Sec 34 CPC Proviso.
Computation: (10,00,000 x 6 x 912) / 36,500 = Rs. 1,49,918 interest.
Total Recovery Claimed in E.P.: Rs. 11,49,918. Generates ready paragraph for recovery warrant schedule.

9. Stamp Duty & Registration Fee Calculator

Statutory Foundation: The Indian Stamp Act, 1899 & State Registration Schedules

Stamp duty is a state subject (List II, Entry 63). Rates vary significantly across India. CaseFlow supports 14+ Indian states:

- **Tamil Nadu Rates:** Sale Deed: 7% Stamp Duty + 1% Registration fee. Partition Deed: 4% Stamp Duty + 1% Registration fee. Lease (<3 yrs: 1%+1%; >3 yrs: 4%+1%).
- **Female Buyer Concessions:** Handles 1% to 2% state discounts for female purchasers (Delhi, UP, Punjab, Rajasthan, Haryana).
- **Specific Performance Proof:** Enables plaintiff to prove readiness and willingness to pay balance consideration plus statutory stamp duty under Section 16(c) Specific Relief Act.

Litigation Case Example: Property Conveyance in Tamil Nadu
Transaction: Sale Deed for commercial property valued at Rs. 1,00,00,000 in Tenkasi SRO.
- Stamp Duty (7%): Rs. 7,00,000
- Registration Fee (1%): Rs. 1,00,000
- Surcharge: Rs. 0
- Total Registration Outlay: Rs. 8,00,000. Total purchaser fund requirement: Rs. 1,08,00,000.